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NATURE OF PROCEEDINGS: Hearing on Motion for Summary

Judgment

The Motion for Summary Judgment is granted as to Defendant Christian McCormick and denied as to Defendant SF Markets, LLC dba Sprouts Farmers Market. The alternative Motion for Summary Adjudication is denied as to Sprouts and denied as moot as to McCormick.

BACKGROUND

Plaintiff Cordeny Kelly (Plaintiff) filed this action against SF Markets, LLC dba Sprouts Farmers Market, sued as Sprouts Farmers Market, LLC (Sprouts), and Christian McCormick (McCormick) (collectively, Defendants), alleging that he was injured when he stepped on a rack lying on the floor of a Sprouts grocery store.

The causes of action are: (1) General Negligence; and (2) Premises Liability.

Defendants filed a Motion for Summary Judgment, or in the alternative, Summary Adjudication. Plaintiff filed an Opposition.

EVIDENTIARY OBJECTIONS

Defendants filed objections to the Declaration of Miles Gerami summarizing the deposition testimony of Freddy Gomez (Gomez) and to the transcript pages the paragraph summarizes. The Court relies on the transcript, not on counsel's summaries of it, and rules on the objections as directed to the transcript. The

Court rules only on the objections material to the disposition of the motion. (Code Civ. Proc., § 437c, subd. (q).)

Objection 1. Overruled as to Gerami Decl., Ex. 5, Gomez Depo., at p. 42:16-25. Gomez was with Plaintiff when the incident occurred, and his testimony that Plaintiff tripped on the grille is percipient testimony, not opinion. (Evid. Code, § 702, subd. (a); Gerami Decl., Ex. 5, Gomez Depo., at pp. 42, 69:8-10.)

Objection 3. Overruled as to Gerami Decl., Ex. 5, Gomez Depo., at pp. 61:19-25 and 62:1-7. After Gomez qualified his first answer, counsel re-asked whether Sprouts inspected the area while Coolsys was working, and Gomez answered “No.” (Gerami Decl., Ex. 5, Gomez Depo., at p. 62:3-5.) The qualification goes to the weight of the testimony, not its admissibility.

Objection 4. Overruled as to Gerami Decl., Ex. 5, Gomez Depo., at pp. 73:11-25 and 74:1-23. The testimony that no employee was assigned to the area at any interval and the qualification that deli team members could go to the case depending on their tasks are both in the transcript, and the Court reads them together. (Evid. Code, § 356.)

Objection 6. Overruled as to Gerami Decl., Ex. 5, Gomez Depo., at pp. 81:23-25 and 82:1-12. The Court takes from the testimony only what it says: that Gomez did not recall a documented sweep or inspection in the interval, and that no video shows an employee inspecting the floor around the rack. Whether the absence of a record supports an inference that no inspection occurred goes to weight, not admissibility.

Objection 7. Overruled as to Gerami Decl., Ex. 5, Gomez Depo., at pp. 107:11-23, 108:7-23, and 110:1-10. Gomez’s testimony about where he directed Plaintiff is his own account of his own conduct, and the qualifications Defendants identify, that he pointed to a general area and denied leading Plaintiff to a hazardous condition, are in the transcript and are stated in the ruling. (Evid. Code, § 356.)

LEGAL STANDARD

“The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (Code Civ.

Proc., § 437c, subd. (c).) “[T]he party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law.” (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.) “There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (Ibid.)

A defendant meets its initial burden by showing “that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc., § 437c, subd. (p)(2).) “Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Ibid.) The Court views “the evidence in the light most favorable to plaintiff, as the nonmoving party, liberally construing her evidence while strictly scrutinizing defendant’s.” (Martinez v. Chippewa Enterprises, Inc. (2004) 121 Cal.App.4th 1179, 1184 (Martinez).)

ANALYSIS

I. Separate Statement

Defendants argue that Plaintiff’s separate statement does not comply with Code of Civil Procedure section 437c, subdivision (b)(3), because Additional Material Facts 1 through 16 cite an incident report, discovery responses, a sweep policy, a sweep report, and a store layout that Plaintiff never filed, because the statement is not in two-column format, and because Additional Material Facts 44 through 50 state legal propositions. Defendants ask the Court to disregard the separate statement in its entirety.

“Failure to comply with this requirement of a separate statement may constitute a sufficient ground, in the court’s discretion, for granting the motion.” (Code Civ. Proc., § 437c, subd. (b)(3).) A deficient opposing statement does not relieve the moving party of its burden of persuasion. (See Aguilar, *supra*, 25 Cal.4th at p. 850.)

Here, the Court disregards Additional Material Facts 1 through 16 to the extent they rest on the unfiled documents, none of which is in the record. (Gerami Decl., ¶¶ 6-9, 13.) Additional Material Facts 44 through 50 state legal

propositions and are not treated as facts. However, the Court declines to disregard the separate statement as a whole. Plaintiff responded to each of Defendants' 11 facts, and Plaintiff filed and served the deposition transcript of Gomez, Sprouts's person most qualified (Gomez Depo.), which Defendants used at length on reply. (Reply, at pp. 5:8-10, 5:27 - 6:1, 6:15-16, 7:7-11, 7:18, 8:6-7.)

II. Unpleaded Theories

Defendants argue that the Opposition introduces theories of negligent contractor selection, qualification, and licensing that the Complaint does not plead.

A “defendant moving for summary judgment need address only the issues raised by the complaint; the plaintiff cannot bring up new, unpleaded issues in his or her opposing papers.” (Laabs v. City of Victorville (2008) 163 Cal.App.4th 1242, 1253.) However, “new factual issues presented in opposition to a motion for summary judgment should be considered if the controlling pleading, construed broadly, encompasses them.” (Id. at p. 1257.)

Here, the Complaint alleges that Defendants were responsible for the operation and maintenance of the premises, negligently maintained the walkways and aisles, and failed to warn. (Compl., GN-1; Prem.L-1.) The Court agrees with Defendants that contractor vetting is a different theory and does not consider it. Whether Sprouts supervised the work, inspected the aisle, or cleared it goes to the method of performing the pleaded maintenance duty, as Defendants concede, and the Court considers those questions on the merits. (Reply, at p. 4:18-24.)

III. Open and Obvious

Defendants contend that the rack was open and obvious, that Plaintiff saw it and walked around it twice before stepping on it, and that the condition's obviousness discharged any duty to warn of it. Defendants further contend that the factors in Rowland v. Christian (1968) 69 Cal.2d 108 negate any duty to remedy the condition, because injury to a customer who has already avoided a visible rack is not foreseeable, Sprouts did not create the condition, and liability would require instantaneous detection of contractor activity.

Whether a duty exists is a question of law. (*Krongos v. Pacific Gas & Electric Co.* (1992) 7 Cal.App.4th 387, 392.) “[A]lthough the obviousness of a danger may obviate the duty to warn of its existence, if it is foreseeable that the danger may cause injury despite the fact that it is obvious (e.g., when necessity requires persons to encounter it), there may be a duty to remedy the danger, and the breach of that duty may in turn form the basis for liability” (*Osborn v. Mission Ready Mix* (1990) 224 Cal.App.3d 104, 122 (*Osborn*)). Necessity is the example the *Osborn* court gave, and the wet pavement in *Martinez*, which “appears to have provided a principal if not sole access way from the street to defendant’s building,” was an instance of it. (*Martinez*, *supra*, 121 Cal.App.4th at p. 1185.) Later cases state the exception more broadly: obviousness “will not negate a duty of care when it is foreseeable that, because of necessity or other circumstances, a person may choose to encounter the condition.” (*Jacobs v. Coldwell Banker Residential Brokerage Co.* (2017) 14 Cal.App.5th 438, 447 (*Jacobs*)). Whether a duty to remedy an obvious condition exists depends on the *Rowland* factors, “such as the foreseeability of harm, defendant’s advance knowledge vel non of the dangerous condition, and the burden of discharging the duty.” (*Martinez*, *supra*, 121 Cal.App.4th at p. 1185.) Those factors “are evaluated at a relatively broad level of factual generality.” (*Cabral v. Ralphs Grocery Co.* (2011) 51 Cal.4th 764, 772 (*Cabral*)). The court’s task “is not to decide whether a particular plaintiff’s injury was reasonably foreseeable in light of a particular defendant’s conduct, but rather to evaluate more generally whether the category of negligent conduct at issue is sufficiently likely to result in the kind of harm experienced that liability may appropriately be imposed” (*Ibid.*)

Here, the open and obvious doctrine does not negate *Sprouts*’s duty as a matter of law. First, Plaintiff’s claims are not limited to a failure to warn. Plaintiff alleges that Defendants negligently maintained the store’s walkways and aisles and failed to keep the premises free of hazards. (Compl., GN-1; Prem.L-1.) The Court assumes for purposes of the Motion that the rack’s visibility discharged any duty to warn of it. Whether *Sprouts* owed a duty to remove or block off a component of its own refrigerator case lying in a customer aisle is a different question. Defendants’ reliance on *Obrien v. Fong Wan* (1960) 185 Cal.App.2d 112, 116 for a categorical rule of no liability for an obvious danger is misplaced. *Obrien* predates *Rowland*, and the Court of Appeal identifies the *Osborn* formulation as “[t]he modern and

controlling law on this subject.” (Martinez, supra, 121 Cal.App.4th at p. 1184.)

Second, the record shows a foreseeable encounter despite the rack’s visibility. The cases ask whether the plaintiff was required or invited to encounter the danger. (Jacobs, supra, 14 Cal.App.5th at pp. 447-448.) In Jacobs, the plaintiff stood on a diving board over an empty pool to look over a fence, and the court agreed with the trial court that he “was neither required nor invited to do so.” (Id. at p. 448.) The court asked the question at the level of the invited class: “potential buyers did not have to approach the dangerous condition (i.e., the empty pool) in order to inspect the backyard.” (Ibid.) It contrasted a golf club patron who slipped on the club’s walkway: “in view of the [club’s] invitation to use the walkway, she was entitled to consider it reasonably safe.” (Ibid.) The invitation that matters is an invitation into the area of the hazard.

Here, Sprouts invited its customers into the aisle where the rack lay, and its assistant manager directed Plaintiff within it. The rack lay at one end of the cheese island in an aisle that remained open to customers during store hours, with no barrier and no sign that service was under way. (Gerami Decl., Ex. 5, Gomez Depo., at pp. 30 - 31:19, 32, 99:5-8.) Sprouts expected customers to look at products displayed at varying heights while walking through that area. (Id. at pp. 32, 54 - 55:2, 118.) Moments before the incident, Plaintiff asked Gomez where an item was, Gomez pointed him toward the general area where the item could be found, that area was also where the rack lay, and Plaintiff was moving in the direction Gomez guided him when he stepped on the rack. (Id. at pp. 105:18-23, 107:15-16, 108, 110; Kawakami Wong Decl., Ex. F, Kelly Depo., at pp. 19:25 - 20:2.) Unlike the buyers in Jacobs, who could inspect the backyard without approaching the pool’s edge, Sprouts invited this customer to the spot where the object lay, to look at products displayed above it. The foreseeable consequence of that invitation is a customer whose eyes are on the merchandise and whose foot meets the object. Those are the “other circumstances” Jacobs describes.

Defendants reply that Plaintiff had already walked around the rack twice, and that Gomez pointed only to a general product area and denied leading Plaintiff to a hazardous condition. (Reply, at pp. 5:25 - 6:3; Gerami Decl., Ex. 5, Gomez Depo., at p. 118.) The two earlier passes show that a route around the rack existed, not that the invitation to look at the merchandise beside it was withdrawn. The general area to which Gomez pointed was, by his account, the

area where the rack lay. (Id. at p. 108.) Thus, leaving a component of a store's display case in an open customer aisle during business hours is a category of conduct likely to result in a customer stepping on it, whether or not that customer noticed the object on an earlier pass. (Cabral, supra, 51 Cal.4th at p. 772; Jacobs, supra, 14 Cal.App.5th at pp. 446, 448.)

Nor did Plaintiff "knowingly embrace an entirely obvious risk" in the sense Jacobs describes. (Jacobs, supra, 14 Cal.App.5th at pp. 448-449.) The plaintiff in Jacobs sought out the danger for a purpose unconnected to the invitation. Plaintiff here stepped on an object he had passed earlier while doing what the store expected and its manager directed. Whether that lapse was reasonable is a question of comparative fault. In Martinez, the court rejected the same argument Defendants make, holding that how the plaintiff navigated a visible hazard "may pose an issue of comparative negligence" but "does not now warrant relieving defendant of all the legal burden of the situation." (Martinez, supra, 121 Cal.App.4th at p. 1186.)

Third, the remaining Rowland factors do not support a categorical exception. The connection between the conduct and the injury is direct, because the rack Plaintiff stepped on is the one Sprouts's contractor left on the floor. (Gomez Decl., ¶ 4.) Sprouts knew before the incident that its contractor was working on the case in the open aisle, because its assistant store manager led the technician there. (Gomez Decl., ¶ 3.) Defendants reply that awareness of the work is not awareness of the rack. (Reply, at p. 6:12-13.) At the level of generality Cabral requires, a possessor that has its contractor disassembling a display case in an open customer aisle during business hours knows in advance that a floor-level obstruction is a likely product of that work. (Cabral, supra, 51 Cal.4th at p. 772.) The burden of discharging the duty is not the instantaneous detection Defendants describe. Sprouts already required its refrigeration contractor, Coolsys to use cones, barriers, or warning signs, and it keeps cones for floor-level hazards. (Gerami Decl., Ex. 5, Gomez Depo., at pp. 44:14-25, 60.) The burden is to enforce that requirement, to check the aisle when the contractor walks away, or to cone or remove the rack, as Gomez did after the incident. (Id. at p. 69:19-24.)

That Plaintiff saw the rack twice and later stepped on it may matter to breach, causation, and comparative fault. However, it does not eliminate the

duty. (Cabral, supra, 51 Cal.4th at p. 772; Martinez, supra, 121 Cal.App.4th at p. 1186.) Accordingly, the Court denies summary adjudication of the negligence and premises liability causes of action on the ground that the condition was open and obvious.

IV. Notice

Defendants contend that Sprouts had no actual notice of the rack, because no employee saw or handled it before the incident, and no constructive notice, because a third-party technician placed it and left it unattended for less than 20 minutes, too short an interval to charge Sprouts with discovering it.

“A store owner exercises ordinary care by making reasonable inspections of the portions of the premises open to customers, and the care required is commensurate with the risks involved.” (Ortega v. Kmart Corp. (2001) 26 Cal.4th 1200, 1205.) “[W]here the plaintiff relies on the failure to correct a dangerous condition to prove the owner’s negligence, the plaintiff has the burden of showing that the owner had notice of the defect in sufficient time to correct it.” (Id. at p. 1206.) “Whether a dangerous condition has existed long enough for a reasonably prudent person to have discovered it is a question of fact for the jury, and the cases do not impose exact time limitations.” (Id. at p. 1207.) Plaintiffs “may demonstrate the storekeeper had constructive notice of the dangerous condition if they can show that the site had not been inspected within a reasonable period of time so that a person exercising due care would have discovered and corrected the hazard.” (Id. at p. 1212.)

The notice requirement does not apply to a condition the owner itself created. “Where the dangerous or defective condition of the property which causes the injury has been created by reason of the negligence of the owner of the property or his employee acting within the scope of the employment, the owner of the property cannot be permitted to assert that he had no notice or knowledge of the defective or dangerous condition Under such circumstances knowledge thereof is imputed to him.” (Hatfield v. Levy Brothers (1941) 18 Cal.2d 798, 806 (Hatfield).) Where the condition is instead “brought about by natural wear and tear, or third persons, or acts of God or by other causes which are not due to the negligence of the owner, or his employees, then to impose liability the owner must have either actual or constructive knowledge of the dangerous condition or have been able by the exercise of ordinary care to discover the condition” (Id.

at p. 806.) The nondelegable duty doctrine treats a maintenance contractor's negligence as the possessor's own. "[T]he duty which a possessor of land owes to others to put and maintain it in reasonably safe condition is nondelegable. If an independent contractor, no matter how carefully selected, is employed to perform it, the possessor is answerable for harm caused by the negligent failure of his contractor to put or maintain the buildings and structures in reasonably safe condition[.]" (Srithong v. Total Investment Co. (1994) 23 Cal.App.4th 721, 726 (Srithong), quoting Brown v. George Pepperdine Foundation (1943) 23 Cal.2d 256, 260 (Brown).) The rule "is a form of vicarious liability because it is not based on the personal fault of the landowner who hired the independent contractor." (Srithong, supra, 23 Cal.App.4th at p. 727.)

Here, a triable issue of material fact exists on notice. Plaintiff identifies no employee who saw the rack before the incident, and Gomez's testimony that an employee exercising reasonable care would have seen it was conditioned on a team member being in the area. (Gerami Decl., Ex. 5, Gomez Depo., at p. 80:3-12; Reply, at p. 6:14-16.) The question is therefore constructive notice. First, under Ortega, the reasonableness of Sprouts's inspection is a question for the jury on this record. Defendants' own evidence fixes the chronology. The technician removed the black rack, placed it on the floor at 12:16:18 p.m., worked beside it until 12:18:43 p.m., and then left the area without returning the rack to its place. (Gomez Decl., ¶ 4.) At approximately 12:38 p.m., Plaintiff stepped on the rack. (Gomez Decl., ¶ 5; Gerami Decl., Ex. 5, Gomez Depo., at p. 76.) By Defendants' count, the rack lay unattended for 19 minutes and 37 seconds. (Reply, at p. 7:3-8.)

Before the incident, Sprouts knew that Coolsys was servicing a refrigerator case in a customer-accessible aisle during store hours, because Gomez had led the technician there at 12:13:05 p.m. (Gomez Decl., ¶ 3; Gerami Decl., Ex. 5, Gomez Depo., at pp. 31:5-8, 56, 58.) Sprouts required Coolsys to use cones, barriers, or warning signs, and Coolsys used none. (Gerami Decl., Ex. 5, Gomez Depo., at pp. 60, 61:1-3.) Sprouts did not close the aisle, did not block off the work area, assigned no employee to monitor the contractor or to make sure customers could pass safely, and did not inspect the area while the work proceeded. (Id. at pp. 58, 59:7-16, 60, 61:19-21, 62:3-5, 84.) Store sweeps were to be conducted hourly, and a courtesy clerk was responsible for inspecting the area between noon and 1:00 p.m. (Id. at pp. 64, 72.) However, Gomez could not recall the last documented inspection before the incident or any documented sweep between 12:16 p.m. and 12:38 p.m., no one was assigned to pass through the area at any interval of 20 minutes or

less, Gomez did not know whether any employee inspected the area after the technician removed the rack, and no video shows an employee inspecting the floor around the rack in that interval. (Id. at pp. 72, 73:11-25, 74, 82, 85:2-8.)

Defendants reply that the hourly store sweep set the measure of reasonable care, that no sweep came due in the unattended interval, and that Plaintiff offers no admissible evidence that a reasonable inspection required a shorter interval. (Reply, at p. 7:9-20.) Defendants assume the answer to the question Ortega assigns to the jury. The care required “is commensurate with the risks involved,” and the cases “do not impose exact time limitations.” (Ortega, *supra*, 26 Cal.4th at pp. 1205, 1207.) The Supreme Court in Ortega described a case in which “the Court of Appeal affirmed the plaintiff’s judgment, based on evidence that the clerk responsible for the area in which the plaintiff slipped on a spool of thread took a 20-minute coffee break without notifying anyone to cover her area during that period,” and it quoted that court’s holding: “Was a 20-minute interval between inspections of the aisles commensurate with the exercise of ordinary care by defendant? This is a question that was properly left with the jury to decide.” (Id. at p. 1208, quoting *Sapp v. W. T. Grant Co.* (1959) 172 Cal.App.2d 89, 94 (Sapp).) Here, unlike in *Sapp*, the source and duration of the condition are known, and the evidence of the risk itself supports a finding that a shorter interval was called for: Sprouts knew of the work, required Coolsys to cone the area, and assigned no one to the aisle while the work proceeded or after the technician left. The jury decides whether an hourly sweep was reasonable care for an aisle in which the store’s contractor was removing a component from a refrigerator case. (Ortega, *supra*, 26 Cal.4th at pp. 1207, 1212-1213.) No evidence shows that anyone inspected this aisle after the technician walked away from the rack. Therefore, Defendants’ showing that the unattended interval was under 20 minutes does not establish as a matter of law that Sprouts lacked constructive notice. Moreover, even if that showing shifted the burden, Plaintiff’s evidence raises a triable issue.

V. Causation

Defendants contend that Plaintiff’s inattention while navigating a rack he had already seen and avoided, rather than any act or omission by Sprouts, was the substantial factor in causing the incident.

“A plaintiff meets the causation element by showing that (1) the defendant’s breach of its duty to exercise ordinary care was a substantial factor in bringing about plaintiff’s harm, and (2) there is no rule of law relieving the defendant of liability.” (Ortega, supra, 26 Cal.4th at p. 1205.) “These are factual questions for the jury to decide, except in cases in which the facts as to causation are undisputed.” (Ibid.)

Here, the mechanism of injury is undisputed. Defendants state in their own separate statement that Plaintiff “stepped onto a black rack on the floor.” (Separate Statement, at p. 2:14-16 [UMF No. 4]; Kawakami Wong Decl., Ex. B, Kelly Depo., at pp. 20:1-2, 20:23-24.) Gomez agreed that Plaintiff tripped on the grille and, after viewing the video, testified that “[t]he customer stepped onto the rack, and I helped him.” (Gerami Decl., Ex. 5, Gomez Depo., at pp. 42, 99:13-15.) The Court does not rely on Gomez’s later answer that he picked up the grille because he realized it had caused the loss of footing. Gomez’s “I don’t know” answers withhold a label for the event and do not dispute that Plaintiff’s foot met the rack. (Id. at p. 105:6-7.) Defendants’ remaining argument, that Sprouts committed no negligent act, is the duty and notice question, which is triable for the reasons stated above. Plaintiff’s inattention is a matter of comparative fault, not a bar, and Defendants cite no authority holding that a plaintiff’s momentary inattention to a known hazard defeats causation as a matter of law. Defendants’ reliance on *Constance B. v. State of California* (1986) 178 Cal.App.3d 200, 207 is misplaced. There, the assailant at a highway rest stop stood in the light, so the alleged lighting deficiency could not have caused the attack. (Id. at pp. 211-212.) Here, the rack is the undisputed cause of the loss of footing. Accordingly, the Court denies summary adjudication of the negligence and premises liability causes of action on the ground that Plaintiff cannot establish causation.

VI. McCormick

Defendants contend that McCormick was named solely by virtue of his employment as store manager, that he was not on duty or on the premises on the date of the incident, and that any liability for his conduct is Sprouts’s under respondeat superior. Plaintiff does not oppose summary adjudication as to McCormick. (Opp., at p. 3:12-13; Gerami Decl., ¶ 50; Response to Separate Statement, at p. 1:21-23.) The Court grants summary judgment in favor of McCormick, and the alternative request for summary adjudication as to McCormick is denied as moot.

CONCLUSION

The Motion for Summary Judgment is granted as to Defendant Christian McCormick and denied as to Defendant SF Markets, LLC dba Sprouts Farmers Market. The alternative Motion for Summary Adjudication is denied as to Sprouts and denied as moot as to McCormick.